NOTICE OF ENTRY

PLEASE TAKE NOTICE that the within is a true copy of an order entered in the office of the Clerk of the Family Court of the State of New York in the County of Westchester.

Date: 9/11/18

Chief Clerk of the Court

Order Distributed: ☐ P ☐ R ☐ P-ATY ☐ R-ATY ☐ C-ATY ☐ DSS/SCU ☐ OTHER .....

Prepared by:

At a term of the Family Court of the State of New York, held in and for the County of Westchester, at 111 Dr. Martin Luther King, Jr. Blvd., White Plains, NY 10601 on 9/11/18

PRESENT: HON. ARLENE GORDON-OLIVER, J.F.C.

In the Matter of Proceeding Under Article ____ of the Family Court Act

TEMPORARY ORDER

File #: 154703

Docket #(s): O-06917-18A
V-07641-18

Tara Walsh
Petitioner(s),

-against-

Stephen Russell
Respondent(s).

NOTICE: YOUR WILLFUL FAILURE TO OBEY THIS ORDER MAY RESULT IN INCARCERATION FOR CRIMINAL CONTEMPT

Petition(s) having been filed on 7/13/18 seeking (circle one): (an order of custody/visitation) (modification of an order of custody/visitation) (violation of an order of custody/visitation) of the following Child(ren):

| Name | Date of Birth |
|---|---|
| E.V. | [redacted] |

The matter having duly come on to be heard before this Court; and

The Petitioner having (personally appeared) (~~not appeared~~), (~~without counsel~~) (with counsel [include name] Lydia S. Antoncic); and

The Respondent having (personally appeared) (not appeared), (~~without counsel~~) (with counsel [include name] Jason A Advocate); and

Jennifer Jackman having appeared as the Attorney for the Subject Child(ren); and

The Court having searched the statewide registry of orders of protection, the sex offender registry and the Family Court's child protective records, and having notified the attorneys for the parties and for the Child(ren), and the parties, of the results of these searches, and the Court having considered and relied upon the following results of these searches in making this interim decision:

Public copy: the child's legal name is shown as E.V.; the date of birth is removed. Otherwise unchanged.

File #: _____

**NOW, it is hereby**

**ORDERED that,** the parties agree that Father shall have visitation with the child, supervised by Delia Farquharson at a Minimum of 3 days per week for at least 2 hours per visits. Ms. Farquharson shall also conduct visits and observations with the Mother at her residence at least 2 times per week. Ms. Farquharson will issue written reports of her visits every 2 weeks to the court and all counsel.

The parties agree to stay away from each other (except for visitation pickup/dropoff) and agree to refrain from communication with one another except with respect to any issues concerning the child.

The Mother shall continue to reside with her parents and shall Not relocate without court approval or written agreement of both parties.

Petitioner shall withdraw her order of Protection + Violation Petitions, # and Respondent shall withdraw ~~his~~ his order of Protection in California, and any Violation petitions he has.

; and it is further

**ORDERED that this Temporary Order shall remain in effect until** Further Order of the Court

**PURSUANT TO SECTION 1113 OF THE FAMILY COURT ACT, AN APPEAL FROM THIS ORDER MUST BE TAKEN WITHIN 30 DAYS OF RECEIPT OF THE ORDER BY THE APPELLANT IN COURT, 35 DAYS FROM THE DATE OF MAILING OF THE ORDER TO THE APPELLANT BY THE CLERK OF COURT, OR 30 DAYS AFTER SERVICE BY A PARTY OR THE ATTORNEY FOR THE CHILD UPON THE APPELLANT, WHICHEVER IS EARLIEST.**

**Dated:** November 14, 2018 **ENTER:**

**HON. ARLENE GORDON-OLIVER**
Judge of the Family Court

File #: _____

**NOW, it is hereby**

ORDERED that, Respondent shall also contact the Cal. Fannie police and state that he does not wish to press criminal charges against Petitioner for dropping and if necessary the parties will enter into a written agreement concerning these issues. The parties consent to NY having jurisdiction over this.

; and it is further

**ORDERED that this Temporary Order shall remain in effect until** Further Order of the Court

**PURSUANT TO SECTION 1113 OF THE FAMILY COURT ACT, AN APPEAL FROM THIS ORDER MUST BE TAKEN WITHIN 30 DAYS OF RECEIPT OF THE ORDER BY THE APPELLANT IN COURT, 35 DAYS FROM THE DATE OF MAILING OF THE ORDER TO THE APPELLANT BY THE CLERK OF COURT, OR 30 DAYS AFTER SERVICE BY A PARTY OR THE ATTORNEY FOR THE CHILD UPON THE APPELLANT, WHICHEVER IS EARLIEST.**

**Dated:** November 14, 2018 **ENTER:**

**HON. ARLENE GORDON-OLIVER**
Judge of the Family Court